

TOKEN SALE AGREEMENT

Terms and Conditions of Sale — ETRF Seed Round v1.0

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IMPORTANT NOTICE — READ BEFORE CONTINUING: This document contains legal information relevant to the acquisition of ETRF tokens. Participation in this sale involves the risk of total loss of invested capital. ETRF tokens are utility tokens and do NOT constitute financial instruments, negotiable securities, shares, or participation in the protocol's profits. Read this document in its entirety before making any transaction.

1. Definitions

"Eternal Fund" or "the Issuer": The decentralized personal retirement savings protocol built on the Arbitrum network, developed and maintained by the founding team led by Cristian F. Taborda.

"ETRF": The native utility token of the Eternal Fund protocol, implemented as a smart contract on the Arbitrum network.

"Token Sale" or "Seed Round": The primary token sale event for ETRF tokens described in this document, corresponding to the first funding round of the protocol.

"Participant": Any natural or legal person who acquires ETRF tokens through the official smart contract during the Token Sale period.

"Smart Contract": The computer program deployed on the Arbitrum blockchain that autonomously and verifiably executes the conditions of the Token Sale, vesting, and token claiming.

"USDC": The USD Coin stablecoin issued by Circle Financial, LLC, used as the sole accepted means of payment in this Token Sale.

"Vesting": The mechanism of gradual and linear release of ETRF tokens over a defined period, once the cliff period has elapsed.

"Cliff": The initial total token lock-up period, during which the Participant cannot claim any fraction of their purchased tokens.

"Wallet": The EVM-compatible blockchain address controlled by the Participant, used to interact with the Smart Contract.

"Whitepaper": The technical and economic document describing the Eternal Fund protocol in detail, available at eternal.fund/whitepaper.

2. Nature of the ETRF Token

2.1 Utility Token

The ETRF token is a utility token designed exclusively for use within the Eternal Fund protocol ecosystem. Its primary function is to grant access to protocol features, including but not limited to: governance participation,

access to premium features, and use as an internal unit of account within the protocol.

2.2 Not a Negotiable Security

THE ACQUISITION OF ETRF TOKENS DOES NOT CONSTITUTE AND SHOULD NOT BE INTERPRETED AS: an investment in securities, shares, bonds, or any regulated financial instrument; a participation in the Issuer's profits, dividends, or cash flows; a right of ownership, voting, or control over Eternal Fund; a promise or guarantee of economic return, value appreciation, or future liquidity; nor a bank deposit, savings product, or collective investment instrument.

The final classification of ETRF as a utility token or security will depend on the Participant's jurisdiction and applicable regulatory interpretation.

3. Participation Conditions

3.1 Eligibility

Only those persons who meet ALL of the following conditions may participate in the Token Sale:

- Be at least 18 years of age or the legal age of majority in their jurisdiction of residence.
- Not reside or be located in any excluded jurisdiction (see Section 3.2).
- Have a compatible EVM wallet with the necessary USDC balance for the transaction.
- Have read, understood, and accepted this document, the Whitepaper, and the Privacy Policy in their entirety.
- Not be included on any international sanctions lists (OFAC, UN, EU, or others).
- Participate using funds of lawful and verifiable origin.

3.2 Excluded Jurisdictions

Participation is PROHIBITED for persons residing, citizens of, or located in:

- The United States of America and its territories (due to SEC restrictions).
- The People's Republic of China.
- North Korea (DPRK).
- Iran, Cuba, Syria, and Venezuela.
- Any country subject to comprehensive OFAC sanctions.
- Any jurisdiction where the purchase, holding, or use of cryptographic tokens is expressly prohibited by law.

3.3 Acceptance of Terms

The execution of any transaction with the Token Sale Smart Contract implies full, unconditional, and unreserved acceptance of all terms contained in this document.

4. Token Sale Conditions

4.1 Seed Round Structure

Parameter	Detail
Available tokens	100,000,000 ETRF (one hundred million tokens)
Price per token	USD 0.01 payable in USDC on the Arbitrum network

Parameter	Detail
Hard Cap	Maximum amount defined in the Smart Contract
Per-wallet cap	Maximum USDC per address, defined in the Smart Contract
Accepted payment	USDC exclusively
Cliff and vesting	Per immutable parameters defined in the Smart Contract at deployment

4.2 Purchase Process

- The Participant approves USDC spending to the Smart Contract.
- The Contract verifies that the round is active, the amount is valid, and does not exceed the per-wallet cap.
- The Contract receives the USDC and records the purchase with the corresponding vesting schedule.
- The Participant can monitor and claim tokens from eternal.fund/sale.

4.3 Vesting and Cliff

- During the cliff period, no tokens can be claimed.
- After the cliff, tokens are released linearly over the vesting period.
- The schedule runs from the time of each individual Participant's purchase.
- Claiming is an action the Participant must execute manually.
- Unclaimed tokens do not expire and remain available in the contract.

4.4 Transaction Irreversibility

All transactions executed on the Arbitrum blockchain are irreversible. Once USDC has been transferred to the Smart Contract, there is no refund, reversal, or cancellation mechanism. The Issuer does not have the technical capacity to reverse on-chain transactions.

4.5 Use of Raised Funds

Funds raised in this Seed Round will be primarily used for:

- Conducting multiple smart contract security audits by top-tier firms.
- Commissioning an economic and tokenomics audit.
- Technical development and protocol growth.
- Liquidity reserves and operations.

A fund usage report will be published once the main audits are completed.

5. Risk Factors

5.1 Total Loss of Capital

The value of ETRF tokens may fall to zero. The Participant must have the economic capacity to absorb the total loss of the invested amount.

5.2 Smart Contract Risk

The team intends to conduct multiple high-level security audits. No audit guarantees the absence of bugs. An exploit could result in partial or total loss of funds.

5.3 Regulatory Risk

The regulatory framework for crypto assets is uncertain and constantly changing. Future changes could affect protocol operations or token utility.

5.4 Liquidity Risk

There is no guarantee that ETRF tokens will be listed on any exchange or that a secondary market with sufficient liquidity will exist.

5.5 Technology Risk

The protocol depends on the Arbitrum and Ethereum networks. Failures or attacks on these networks could affect protocol availability.

5.6 Project Risk

The team may fail to execute the roadmap for technical, financial, regulatory, or personal reasons.

5.7 Custody Risk

Tokens are held in the Participant's wallet. The Issuer has no access to private keys. Loss of wallet access means permanent loss of tokens.

6. KYC and Anti-Money Laundering

The Issuer reserves the right to implement KYC/AML processes at any time. The Participant declares that the funds used originate from lawful activities, agrees to provide identity documentation when required by the Issuer, and accepts that the Issuer may block token claims if suspicious activity is detected.

7. Intellectual Property

All source code, smart contracts, user interface, whitepaper, the "Eternal Fund" brand, and logo are the intellectual property of the Issuer. The acquisition of ETRF tokens does not grant any rights over said intellectual property.

8. Disclaimer of Liability

To the maximum extent permitted by law, the Issuer, its team, collaborators, auditors, and advisors SHALL NOT be liable for: losses from a decline in ETRF token value; losses from bugs, vulnerabilities or exploits in smart contracts, even if audited; losses from loss of wallet access; losses from regulatory changes; losses from failures in the Arbitrum or Ethereum networks; or any indirect, consequential, punitive, or special damage. PARTICIPATION IN THIS TOKEN SALE IS AT THE PARTICIPANT'S SOLE RISK.

9. Amendments to These Terms

The Issuer may modify these Terms at any time, notifying through eternal.fund and official protocol channels. Modifications will take effect 48 hours after publication. Vesting and cliff conditions already executed on-chain are immutable.

10. Governing Law and Dispute Resolution

10.1 Governing Law

This document shall be governed by the general principles of law applicable to international commerce and contracts for digital assets, without prejudice to the mandatory laws applicable in the Participant's jurisdiction.

10.2 Dispute Resolution

The parties shall first seek an amicable resolution through direct communication. If no agreement is reached within 30 business days, any dispute shall be submitted to international arbitration under the rules of the International Chamber of Commerce (ICC).

10.3 Language of the Contract

This document is drafted in Spanish. In the event of a conflict between translated versions and the Spanish version, the Spanish version shall prevail.

11. General Provisions

This document, together with the Whitepaper and Privacy Policy, constitutes the entire agreement between the Issuer and the Participant regarding the Token Sale. If any clause is declared invalid or unenforceable, the remaining clauses shall continue in full force.

12. Contact Information

Website: eternal.fund

Legal email: legal@eternal.fund

Discord: discord.gg/eternalFund

Security (bug bounty): security@eternal.fund

By connecting your wallet and interacting with the Token Sale Smart Contract, you declare that you have read, understood, and fully accepted these Terms and Conditions.